

10. 9:00 AM CASE NUMBER: C25-03490
CASE NAME: HERLING MARTINEZ VS. WILLIAM KATAKIS
TRANSFER AND CONSOLIDATE
FILED BY: MARTINEZ, HERLING MILENA
TENTATIVE RULING:

Plaintiff, Herling Milena Martinez, seeks to transfer a separate case to this Court for consolidation with the instant action. The motion is **DENIED without prejudice**, as discussed below.

Background

Plaintiff was living with, and in a romantic relationship with, defendant William J. Katakis for 16 years. In the present action, plaintiff sues over a number of allegations that detail physical, emotional, verbal, and financial abuse.

Plaintiff alleges she was a practicing dentist in Costa Rica and was on track to become licensed to practice in California, but at defendant's urging, she gave up her career to care for the couple's child. Plaintiff alleges defendant had a notary come to their house and that he informed plaintiff she was signing a marriage license and to keep it a secret until after they had a wedding ceremony, but that was false. (Complaint, ¶¶13-15.) Plaintiff alleges that she relied on various promises made by defendant to replace the income she would have earned as a dentist, to take care of her and share profits from various business dealings, etc., but that those promises went unfulfilled. Plaintiff and defendant lived primarily in Contra Costa County, but they purchased a home together in Truckee, taking title as joint tenants, in 2021.

The complaint alleges causes of action for (1) Equitable Partition (relating to their Alamo home), (2) Breach of Oral Contract, (3) Breach of Implied-in-Fact Contract, (4) Breach of Implied-in-Law Contract, (5) Promissory Estoppel, (6) Breach of Fiduciary Duty, (7) Unjust Enrichment, (8) Fraud and Deceit, (9) Constructive Fraud, (10) Negligent Misrepresentation, (11) Professional Negligence, (12) Constructive Trust, (13-14) Violation of California Business and Professions Code § 17200, and (15) Accounting.

A lawsuit for partition appears to have been filed by Mr. Katakis in Placer County, though aside from statements by counsel providing the case number (S-CV-0055101), plaintiff submits no evidence of that case, no evidence regarding who initiated it (references are to "plaintiff," not by name) and when it was filed. (Declaration of Charles S. Bronitsky in Support of Motion, hereinafter "Bronitsky Decl.," ¶2.)

Standard

Generally actions involving real property are to be filed in the county where the property is located. (Code Civ. Proc., § 392, subd. (a).) Still, a judge may transfer an action from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. (Code Civ. Proc., § 403.) As provided in section 404, these common questions need to also be "predominating and significant to the litigation." (Code Civ. Proc., §§ 404, § 404.1.)

Discussion

Plaintiff contends the actions share common questions of fact and law, but does little to explain. She asserts consolidation is appropriate "based on the nature of the parties' sixteen-year quasi-marital relationship." (Bronitsky Decl., ¶16.) As noted in the opposition, her

evidence “largely recites the statutory factors without supplying specific supporting facts demonstrating that common issues are predominating and significant in both actions.” (Memorandum of Points and Authorities in Support of Opposition, 3:3-6.)

In opposition to the motion, defendant points out that the Placer County partition action was filed in Placer County Superior Court because Placer County is where the Truckee Property is located. (Code Civ. Proc., § 392.) Further, the opposition contends that ownership of the Truckee Property is not disputed so that action will not determine the issues to be decided in this “Marvin Action,” only order the property sold and proceeds divided via a court trial, not a jury trial as will be needed in this case.

Plaintiff’s own complaint in this action concedes that parties do, in fact, hold title as joint tenants. (See. e.g., Complaint, ¶1(f), ¶84, ¶98(vi).) While plaintiff contends that “the ends of justice” will be served by preventing partition without fully addressing the relationship issues at play here, it is not clear to this Court that delaying or denying partition would be appropriate where the parties agree they hold title jointly and always intended to hold title jointly.

Plaintiff asserts, for the first time in reply, that defendant is taking the position in the Placer County partition action that he contributed 94.62% of the purchase price, that defendant is claiming entitlement to corresponding offsets and reimbursements, and that the Placer action is not a self-contained property-sale dispute. This argument is new and no evidence has been submitted concerning the positions taken by the parties in that case. New arguments and evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *People v. Williams* (1999) 20 Cal.4th 119, 129 [“moving party must carry the initial burden of informing its opponent and the court of the specific basis for its motion.”])

Plaintiff also presents no evidence suggesting the identity of any witnesses, either in this action or in the Placer County action. Accordingly, the Court cannot determine whether witnesses reside in Contra Costa County or elsewhere. Presumably, any expert related to value of the Truckee Property would be located there. In other words, plaintiff has not shown that transfer would favor convenience of the witnesses. Further, while plaintiff’s counsel is located in San Francisco and Foster City, defense counsel appears to be located in Truckee and Turlock. These locations do not clearly point to one venue as being the most efficient for counsel.

While plaintiff argues judicial resources will be conserved by initiating a transfer, this is not clear to the Court. Other methods exist for avoiding inconsistent rulings and judgments. For example, a court can implement a stay of proceedings where appropriate. They can also take judicial notice of the orders and judgments from other courts.

Based on plaintiff having failed to meet her burden on the motion here, the Court is unpersuaded that transferring and consolidating the Placer action in this Court is appropriate. Nonetheless, the Court encourages the parties to consider whether a voluntary stipulation to consolidate the matters in one of the venues is appropriate. If not resolved by such stipulation, the moving party may renew the motion if they believe any further information may address the shortcomings discussed above.

11. 9:00 AM CASE NUMBER: C26-00203
CASE NAME: RACHEL SHUMATE VS. DIEGO MIJARES
MOTION TO COMPEL ARBITRATION
FILED BY: LYFT INC.,
TENTATIVE RULING:

This motion has been **WITHDRAWN** by the moving party. See Notice of Withdrawal filed September 21, 2026.

12. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: FIRST CLASS PROPERTIES, LLC
TENTATIVE RULING:

On April 28, 2026, defendant First Class Properties, LLC (“Defendant”) filed a Motion to Strike portions of plaintiff Jessica Jackson’s (“Plaintiff”) Complaint (the “Motion to Strike”). The Motion to Strike was set for hearing on September 28, 2026.

Background and Analysis

No opposition was filed. However, Plaintiff filed a First Amended Complaint on August 25, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer or motion to strike before the hearing, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the motion was directed. See *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Motion to Strike off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike is ordered **OFF-CALENDAR** as moot.